

Court No. - 40

Case :- CONTEMPT APPLICATION (CIVIL) No. - 5663 of 2014

Applicant :- Mohd. Iqbal Ansari

Opposite Party :- Roshan Jacob, Incharge M.D./G.M. K.E.S.C. Ltd. And Anr.

Counsel for Applicant :- Iqbal Ahmad

Hon'ble Rajesh Dayal Khare,J.

Heard learned counsel for the applicant.

The grievance of the applicant is that the opposite parties-contemnor have deliberately and intentionally flouted the order dated 13.05.2014 passed in Civil Misc. Writ Petition No. 26687 of 2014 whereby the opposite party-contemnor was directed to take appropriate decision in accordance with law in case, the applicant complies with the provisions of clause 4.3 of Electricity Supply, Code, 2005.

Learned counsel for the applicant contends that the aforesaid order of the Writ Court was duly served upon the opposite party on 22.05.2014, copy of receipt has been filed as annexure-4 to the affidavit accompanying this application and the opposite party-contemnor has not decided the matter of the applicant. It is thus contended that the aforesaid order of the writ Court has not been complied with and the opposite party has deliberately flouted the order of the Writ Court.

The opposite parties are bound by the order of this court and in case they do not comply with the directions of the writ court within a period of two months of receipt of this order, without any reasonable cause, the court would have no option but to proceed against them under the Contempt of Courts Act.

The applicant shall supply a duly stamped registered envelope addressed to the opposite parties and another self-addressed stamped envelope to the office within two weeks from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite parties within three weeks from today and keep a record thereof.

The opposite parties shall comply with the directions of the writ court and intimate him of the order through the self-addressed envelope within a week thereafter.

In case, opposite parties does not comply with the aforesaid directions, it would be open to the applicant to approach this court again.

With the aforesaid observations, this application is finally disposed of at this stage.

Order Date :- 10.10.2014

S.Ali